

24STCV20731 24STCV20731

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Background

This is a personal injury action. On August 15, 2024, Ruben Vera ("Plaintiff") filed a complaint against University of Southern California, Apex Security Group, Inc. ("Apex"), Contemporary Services Corporation, Live Nation Worldwide, Inc., Live Nation Entertainment, Inc., and Los Angeles Memorial Coliseum (collectively "Defendants") alleging causes of action for negligence, negligent infliction of emotional distress and assault and battery.

On October 31, 2025, Plaintiff propounded Form Interrogatories, Special Interrogatories, Requests for Production, and Requests for Admissions on Defendant Apex. On February 20, 2026, Apex served responses.

On April 8, 2026, Plaintiff filed motions to compel further responses to Form Interrogatories ("FROGs"), Special Interrogatories ("SROGs"), Requests for Production of Documents ("RPDs"), and Requests for Admissions ("RFAs").

On June 23, 2026, Apex filed oppositions to all four motions.

As of July 1, 2026, no replies have been filed.

This motion addresses all four motions to compel further responses.

Legal Standard

a.

Procedural Standards

Notice of a motion to

compel further discovery must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., §§ 2030.300, subd. (c); 2033.290, subd. (c).) The motion must also be accompanied by a meet and confer declaration. (Code Civ. Proc., §§ 2030.300, subd. (b)(1); 2033.290, subd. (b).)

California Rules of

Court, Rule 3.1345 requires that all motions or responses involving further discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. (Cal. Rules of Court, Rule 3.1345, subd. (a)(3)).

b.

Interrogatories

Code of Civil Procedure section

2030.220, subdivision (a) requires that “[e]ach answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.” Pursuant to Code of Civil Procedure section 2030.300, a party may move to compel further responses to a form interrogatory if the other party’s answer is “evasive or incomplete.” The responding party has the burden of justifying the objections to the form and special interrogatories. (Coy v. Super. Ct. (1962) 58 Cal.2d 210, 220-221.)

c.

RPDs

“On

receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive.

(3) An objection in the response is without merit or too general.” (Code of Civ. Proc. § 2031.310(a).)¿

Under California law, the objecting party has the burden of justifying its objections when the propounding party requests that the Court order further responses. (Coy v. Superior Court¿(1962) 58 Cal.2d 210, 220-221.) Further, under Code of Civil Procedure section 2023.010, it is a misuse of discovery to make unmerited objections. (Code Civ. Proc. § 2023.010(e).)¿¿

d.

RFAs

Code Civil Procedure section 2033.290 provides, in pertinent part, that “[o]n receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: (1) An answer to a particular request is evasive or incomplete. (2) An objection to a particular request is without merit or too general.” (Code Civ. Proc. § 2033.290(a).)¿¿

e.

Sanctions

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2033.290(d).)¿

Discussion

a.

Meet and Confer

Plaintiff has

satisfied the meet and confer requirement. On February 23, 2026 Plaintiff sent

Apex's counsel a meet and confer email identifying the alleged deficiencies in Apex's verified responses. (Kocaj Decl., ¶ 9i; Ex. 10.) On March 4, 2026, Plaintiff emailed Apex's counsel again to inform them they intended to file a motion to compel further responses. (Kocaj Decl., ¶ 9k; Ex. 11.) An extension was granted until March 27, 2026, to allow Apex to serve further responses. On April 8, 2026, after not receiving verified responses, Plaintiff attempted to contact Apex via telephone and email regarding the additional responses. (Kocaj Decl., ¶ 9o; Ex. 13.) Apex's counsel informed Plaintiff that her husband had surgery and as his sole caregiver she needed more time to serve the additional responses. (Doumar Decl., ¶¶ 14-15, Ex. F.) On April 8, 2026, Plaintiff filed the instant motions.

The Court

finds Plaintiff has made a good faith and reasonable attempts to communicate and meet and confer with Apex about the alleged deficiencies in the responses. Therefore, Plaintiff has satisfied the meet and confer requirement.

b.

Timeliness

Apex argues Plaintiff's motion is untimely. Apex served responses, in the form of objections, on February 20, 2026. Therefore, Plaintiff had until April 6, 2026 – 45 days after service of responses – to file a motion to compel further. (Code Civ. Proc., §§ 2030.300, subd. (c); 2033.290, subd. (c); Doumar Decl., ¶ 10.) Plaintiff's motions were not filed until April 8, 2026, thus making the motions untimely.

Accordingly, the motions to compel further responses are DENIED.

c.

Discovery Responses

Plaintiff argues Apex's objections and responses to FROGs Nos. 3.1, 4.1, 4.2, 12.1-12.7, 13.1, 13.2, 14.1, 14.2, 15.1, 16.1-16.7, 16.9, 17.1, SROGs Nos. 1-74, RPDs Nos. 1-67, and RFAs Nos. 1-67 are without merit, improper, and consist of boilerplate objections.

In opposition, Apex argues they served verified further responses to the FROGs, SROGs, RPDs, and RFAs on June 22, 2026, and the motion

must be denied as moot. (Doumar Decl., ¶¶ 3-4, Ex. A.)

Here, the Court also finds that Apex served verified further responses and thus the instant motions to compel further responses are moot. (Doumar Decl., ¶¶ 3-4, Ex. A.)

Accordingly, the Motions to Compel Further Responses to FROGs, SROGs, RPDs, and RFAs are DENIED as moot.

d.

Sanctions

Plaintiff requests monetary sanctions against Apex and their counsel in the amount of \$3,060 for the motion to compel further responses to FROGs, \$2,260 for the motion to compel further responses to SROGs, \$2,260 for the motion to compel further responses to RPDs, and \$2,260 for the motion to compel further responses to RFAs, for a total of \$9,840 across all four motions. (Kocaj Decl., ¶ 18.)

Given the motions were untimely and moot, the Court DENIES Plaintiff's request for monetary sanctions against Apex and their counsel.

Conclusion

The Motion to Compel Further Responses to Form Interrogatories is DENIED.

The Motion to Compel Further Responses to Special Interrogatories is DENIED.

The Motion to Compel Further Responses to Requests for Production of Documents is DENIED.

The Motion to Compel Further Responses to Requests for Admissions is DENIED.

The request for monetary sanctions against Apex and their counsel is DENIED.